

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 23-03

CERTIFIT, INC. v. EVERGREEN SHIPPING AGENCY (AMERICA) CORP.,

AS AGENT FOR EVERGREEN LINE, EVERGREEN GROUP D/B/A

EVERGREEN LINE

JOINT STATUS REPORT

Pursuant to the July 13, 2023 Order to File Joint Status Report and Proposed Scheduling Order, the Complainant CertiFit, Inc. (“CertiFit” or “Complainant”) and Respondents Evergreen Shipping Agency (America) Corp., as Agent for Evergreen Line, Evergreen Group d/b/a Evergreen (“Evergreen” or “Respondent”, and jointly with CertiFit, the “Parties”), hereby submit their joint status report.

I. Consumer Affairs and Dispute Resolution Services

On July 17, 2023, counsel for the Complainant emailed the Federal Maritime Commission (inquiries@fmc.gov) requesting guidance on scheduling a preliminary conference with the Commission’s Office of Consumer Affairs and Dispute Resolution Services (“CADRS”). On July 18, 2023, counsel for the Complainant was contacted by a representative from the Commission and discussed the possibility of CADRS-led mediation. Although counsel for the Parties were unable to hold a joint conference call, each has spoken with a representative from the Commission regarding alternative dispute resolution. Currently, the Parties are weighing whether mediation with CADRS or an alternative third-party mediator would be helpful in resolving this dispute.

II. Initial Disclosures

The Parties have agreed to exchange and serve Initial Disclosures by July 24, 2023.

III. Proposed Scheduling Order

The Parties propose the following Scheduling Order:

<u>Event</u>	<u>Proposed Deadline</u>
Parties will exchange and serve Initial Disclosures.	July 24, 2023
Parties may serve initial written requests for discovery.	August 10, 2023
Parties may serve subpoenas for the production of documents and/or commanding attendance at a deposition to third parties.	July 24, 2023
Complainant to identify expert witnesses, if any.	September 1, 2023
Depositions	August 1, 2023 – October 21, 2023
Report of Complainant's experts, if any, to be provided to Respondent.	September 15, 2023
Respondent to identify rebuttal expert witnesses, if any.	October 2, 2023
Last day to serve supplemental discovery requests.	September 28, 2023
Respondent to provide Complainant with rebuttal experts' reports, if any.	October 16, 2023
Close of discovery.	October 21, 2023
Complainant's initial brief due.	November 30, 2023
Respondent's opposition brief due.	January 8, 2023
Complainant's reply brief due.	January 22, 2024

[signature page follows]

Date: July 18, 2023

Respectfully submitted,

RICHARDS BRANDT MILLER NELSON

/s/ Sean B. Leonard

Barry G. Scholl

Sean B. Leonard

Barry-Scholl@rbmn.com

Sean-Leonard@rbmn.com

(801) 531-2000

111 E. Broadway Suite 400

Salt Lake City, UT 84111

Counsel for Complainant

MAHONEY & KEANE, LLP

/s/ Edward A. Keane (w/ permission)

Edward A. Keane

Garth S. Wolfson

ekeane@mahoneykeane.com

gwolfson@mahoneykeane.com

(212) 385-1422

40 Worth Street, Suite 602

New York, NY 10013

Counsel for Respondent